



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-33305-2026
Decided On: 09.06.2026

BALJINDER KAUR
....PETITIONER(S)

VERSUS

STATE OF PUNJAB
....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. AS Virk, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.125 dated 22.05.2026 under Section 420, 465, 467, 468, 471, 120-B IPC (corresponding Sections 318 (4), 336(2), 338, 336(3), 340(2), 61(2) BNS, 2023) registered at Police Station City Rajpura, Tehsil Rajpura, District Patiala.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the dispute is purely civil in nature but has been given a colour of criminal liability. The complainant has already instituted a civil suit challenging the Will dated 27.05.2024 executed by late Smt. Manjit Kaur in favour of her grandson,

Master Jaskanwar Singh Sarwara, son of the petitioner. It is further submitted that, in order to pressurize the petitioner and by way of a counterblast to the FIR earlier lodged by the petitioner, the complainant has got the present FIR registered. The petitioner further submits that he is ready and willing to join the investigation.

Notice of motion.

On behalf of the State/Complainant

On the asking of the Court, Mr. Yatin Bunker, AAG Punjab for the respondent/State and Ms. Shruti, Advocate for the complainant accept notice on and vehemently oppose the prayer made by learned counsel for the petitioner on the ground that serious allegations have been levelled against the petitioner regarding the alleged forgery of the Will of deceased Smt. Manjit Kaur. It is further alleged that the petitioner actively participated in the preparation of the forged Will, and as per the expert report, the document has been found to be a case of traced forgery.

3. Analysis

In the present case, it is an admitted position that the dispute essentially arises out of a civil nature, wherein the validity of the Will in question is under challenge. The investigation is required to proceed on the basis of documentary evidence, and no material appears to be required to be recovered, thereby not necessitating custodial interrogation.

The petitioner has further undertaken in para 14 of the petition that he is willing to join the investigation and shall extend full cooperation in its further conduct. In these circumstances, this Court finds no ground to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

09.06.2026

NainaRajput

Whether speaking/reasoned

:Yes/No

Whether reportable

:Yes/No